

Fiqh of Sawm, I'tikaaf and Sadaqah tul-Fitr Cheat Sheet

Condensed

Sawm

- *Three types of fasts*
 1. Bare minimum; refraining from eating and fasting
 2. Restraint from wasting time, sin, ٤١
 3. Restraint from everything except ibaadah of Allah
- *Conditions for who is obligated to fast/do ibaadah in general*
 1. Above the age of puberty
 2. Muslim
 3. Sane
 4. In a Muslim land (not relevant anymore)
- *Who needs to physically fast in Ramadan*
 1. Resident
 2. Person who is healthy
 3. Be in a state of full taharah (not menstruating or post-natal bleeding)
- *Conditions of validity- What are the conditions for a fast to be accepted?*
 1. A person makes intention to fast in time where intention is accepted
 2. Women in full state of taharah
 3. Abstaining from food, drink, intercourse
 4. Being in a state of janaabah does not break your fast (but you cannot pray so....)
- *Types of fasts*
 1. Fard: Only Ramadan
 2. Wajib
 - a. Doing qadaa' of a voluntary fast you broke
 - b. Fast of a vow
 - c. Kaffarah fast
 3. Sunnah mu'akkadah: Only *ashura* with one extra day
 4. Mustahabb
 - a. 3 days of every month
 - b. White days
 - c. Mondays and Thursdays
 - d. 6th of Shawwal
 - e. Arafah (if not at Hajj)
 - f. Fast of Dawood (every other day)
 5. Makruh (discouraged in this case)
 - a. Fasting *ashura* without a second day

- b. Saturdays
 - c. Fasting multiple days in a row without breaking in between
 - 6. Haram
 - a. Eid al-Fitr
 - b. Eid al-Adha
 - c. Three days of Eid al-Adha
- *Types of kaffarah fasts*
 1. Breaking fast for no reason in Ramadan (60 days)
 2. Breaking fast through intercourse (60 days)
 3. *ظهار* statement in jahiliyyah where husband insulted wife (60 days)
 4. Breaking a binding oath (1- free a slave, 2- feed 10 poor people, 3- fast three days)
 5. Breaking ihram (10 days)
 6. Accidental manslaughter (60 days)
- *When can you have intention to fast?*
 - **Overarching rule:** When a fast is naturally specified, then no separate niyyah is needed
 - Ramadan or specified oath
 - Intention can be made until right before dhuhr time
 - Every other fast, you have to specify your intention:
 1. Qadaa' of Ramadan
 2. Qadaa' of a nafl fast you broke
 3. Kaffarah fast
 4. Oath not specified
- *What specifies Ramadan has begun?*
 1. Moon sighted
 - a. With physical eye or assisted moonsighting; tools such as telescopes
 2. 30 days of Sha'baan pass
- *What does not break your fast?*
 1. Eating forgetfully
 2. Drinking forgetfully
 3. Intercourse forgetfully
 4. Pores of skin absorbing oil
 5. Hijamah
 6. Sins of tongue
 7. If someone intends to break their fast but does not
 8. Something mistakenly entering your body and you cannot prevent is
 - a. Dust, smoke, insect
 9. Waking up in state of janaabah
 10. Going into river and water enters your ears
 11. Anything in your body (mucus, vomit) being accidentally swallowed
 12. Eat something small from your teeth
 13. Put something small on tongue and it dissolves; no nutrients (sesame seed)
 14. Injection either in vein or flesh

- *What breaks your fast*
 - صورة - physical form (eating a rock)
 - معني - concept/nonphysical form (IV)
 - Essentially, what breaks your fast is physical form (food entering body) and an idea/concept behind breaking the fast (nutrition entering body)
 - If one of the two is broken, qadaa' is fasted ONLY
 - If BOTH are broken, qadaa' AND kaffaarah are required (penalty of full crime)
- *What would prevent kaffaarah from being necessary?*
 1. Any fast broken outside of Ramadan
 2. Mistake
 3. Dire necessity/hunger
 4. Forced to break fast
- *What is kaffaarah?*
 - Specific to the order below unless it can't be fulfilled (Malikis say there is an option)
 1. Free a slave
 2. Fasting 2 months without a break
 3. Feed 60 poor people
- *What is makruh for a fasting person?*
 - **Overarching rule:** You come closer than needed to breaking fast
 - Anything that can weaken the body (hijaamah, running a marathon)
- *What is mustahabb to do while fasting?*
 - Suhoor
 - To stop eating suhur a few minutes before Fajr
 - Break fast right after you are sure Fajr came in
 - Busy yourself with remembrance of Allah, control anger and desires
 - Be in a state of taharah
- *Valid excuses to break fast*
 - Sickness
 - Traveler of a long distance
 - Pregnant/breastfeeding woman either her or the baby will be harmed
 - Menstruation (not even permissible to fast)
 - Extremely elderly person who it is difficult to fast for (pay fidyaa but no qadaa')
- *When is it fard to fulfill a vow?*
 - Three things must be present: 1) some part of the act is fard- salah, sawm, 2) whatever you are taking an oath to do has to have a separate pure intention- no external reason to do it, and 3) the action cannot be fard- "I swear by Allah I will pray Dhuhr tomorrow if I get 100 on the fiqh test!"

Itikaaf

- *Types of Itikaaf*
 1. Wajib: Only if a person takes an oath
 2. Sunnah muakkadah kifaayatan: One person in the community can alleviate for everyone in last ten days of Ramadan
 3. Mustahabb: During last ten nights of Ramadan
- *How long is Itikaaf?*
 - Wajib itikaaf is however long you take the oath for
 - Last ten nights of Ramadan
 - Bare minimum of nafl itikaaf is just one moment
 - Enter masjid with intention of itikaaf on top of regular salah
- *What breaks Itikaaf?*
 1. Leaving masjid without valid excuse
 2. Menstruation
 3. Intercourse
- *Valid reasons to leave the masjid during itikaaf*
 1. Natural reasons (bathroom)
 2. Religious reasons (no jama'a for some reason at the masjid you are doing itikaaf at)
 3. Dire necessities
- *Etiquettes of Itikaaf*
 1. Control tongue and only speak of good
 2. Pick the best masjid in your area (Masjid Haram, Nabawi, Aqsa)
 3. Be in state of remembrance of Allah

Sadaqah tul Fitr

- **Sadaqah** = donations, not mandatory
- Sadaqah tul Fitr can also be called 'Zakatul Fitr' because it **is** required
 - Called sadaqah because it is such a small amount (varies on location)
- Purpose of this sadaqah is to have poor people benefit and be able to spend on Eid
 - Hence, it is best to pay it in the last ten nights
- *Who is required to give it?*
 1. Muslim
 2. Free person
 3. Should own the zakah threshold (*nisaab*)
 - a. About \$13,000 threshold, and sadaqah tul fitr is usually \$10-20
 - b. Any person that has extra should give it
 - c. **Not** required to own that amount for one year like zakah
- *When is it fard to pay?*
 - If alive at Fajr of Eid
 - Mustahabb to pay it before salah of Eid
- *Who are you required to give sadaqah on behalf of?*
 1. Yourself
 2. Young kids with no wealth of their own
 - a. If they have their own wealth, you can use it to pay theirs
 - b. For Hanafis, it is not fard for men to pay for their wives
 - c. Adult children if they are incapable of working (mentally not okay)
 - d. You must pay for everyone you are **financially responsible** for
- *What is the amount for sadaqah tul fitr?*
 - For Hanafis, both sadaqah tul fitr and zakah are the same threshold
 - Hanafis say liquid currency is better but other three say it should be grain/food
 - Cost of average of 2 meals in your community (usually just \$10-20)

Expanded

- *Who needs to physically fast in Ramadan*
 - Fasting is not fard on a traveler; up to personal jurisdiction
 - More than 48 miles for less than 15 days
 - Shortening salah is wajib for Hanafis; other three prefer full salah
- *Conditions of validity*
 - Malikis, Shafis, Hanbalis say you need to make intention by Fajr for Ramadan specifically; outside of Ramadan (nafli fasts) can be any time before Dhuhr
 - Hanafis keep it the same outside and inside Ramadan (before Dhuhr)
 - For Hanafis, any intention you make outside of Ramadan fast is invalid
 - In Ramadan, the only time this is relevant is if you make firm intention **not** to fast the next day
- *Makrooh tahrimi v tanzihi*
 - Tanzihi: Disliked but not sinful
 - Tahrimi: Disliked and sinful
 - Only difference between this and haram is a point of aqeedah; if you do not believe something haram is haram, you are outside of the fold of Islam'
- *Moonsighting 101*
 - رؤيته is used meaning when you see the moon, not the existence of it
 - What is controversial? → **calculations**
 - No world where this is okay BUT collective mistakes are pardoned
 - Better to keep unity of community for Eid/Ramadan
 - The only reason calculations was ever normalized was for the sake of convenience
- يوم الشك - Day of doubt
 - Day after the 29th of Ramadan (either 30th of Shabaan or 1st of Ramadan)
 - Should **not** fast unless it is with the intention of Ramadan
- *What breaks your fast?*
 - Forgetfulness is automatically forgiven; outside of discussion
 - خطأ is making a mistake; you know you are fasting but still break your fast
 - Hanafis are the only ones who say if you intend your fast breaking but don't, no qadaa' needed
 - Shafis/Hanbalis: Qadaa'
 - Malikis: Qadaa' and kaffarah
 - Tasting food is technically allowed because neither of 2 are violated (not ideal regardless)
 - Qadaa and kaffarah required for:
 1. Eating something you would not normally eat
 2. Medicine for fun
 3. Drinking water
 4. Intercourse
 5. Drinking rain on purpose
- *What requires kaffarah?*
 1. Fast broken in Ramadan
 2. Breaking fast intentionally
 3. Cannot be out of dire necessity
 4. Cannot be forced
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- *When is it fard to only do qadaa' but not kaffaarah?*
 - Only one of the two violated (soorah or ma'ni)
 - sickness , traveling, breastfeeding, menstruation, postnatal bleeding, unconsciousness, insanity
 - Eating something you would not normally eat (rock)
 - Thought it was still suhur or maghrib came in
 - Gargling water excessively in wudu and swallowing accidentally
 - Eating forgetfully but then continuing to eat the rest of the day
 - Traveling and then became a resident and then break fast
- *Hanafis' difference between fard and wajib*
 - Something proven by mutawaatir narration is fard
 - Anything that is not at that level is wajib
 - Hanafis say it is wajib to make up a nafl fast if you break it but the other 3 madhaahib say it is an option (*proof: hadith saying 'do not nullify your actions'*)
 - Both are equal in requirement and are sinful if you don't do it
 - Difference is, "If someone denies this act, are they outside the fold of Islam?"
- *What is not makruh?*
 - Putting oil/lotion on skin/beard
 - Taking a shower to cool down
 - Wrapping yourself in a wet towel to cool down
- *مسنون* synonymous with sunnah mu'akkada- Prophet never missed it; highly encouraged
- *مندوب* synonymous with mustahabb- encouraged but lighter
- *Itikaaf details*
 - Masjid needs to have a consistent jama'a (to avoid being like a monk), imam and muaddhin
 - Hanafis are the only ones that allow i'tikaaf at home for women
 - Other three madhab say that is not considered itikaaf
 - Hanafis and Malikis say it is required to fast; other two say mustahabb
 - It is makruh in itikaaf to bring merchandise in the masjid and sell things unnecessarily
 - Also makruh to stay silent if you think it is an ibaadah
- *Sadaqah tul Fitr*
 - Other 2 madhab say even if you have the bare minimum, as long as you have extra, you should be giving sadaqah tul fitr
 - For opinions related to sadaqah/zakah, it is better to follow the most giving opinion
 - Multiple people can give sadaqah to the same person
 - Recipients are the same as those of zakah
 - Most important requirement is that they are muslim; benefitting the ummah